

Report: Remote consultation

DPE: Stuart Lee

Staff member: Hayley Rampley

Agenda

Introductions

1. Where are you at (review of status)? How we can support you
2. Staff changes - housekeeping
3. Staff training and raising staff awareness
4. DPE KB updates (to do lists, making the rounds accountability tracker, latest news etc)
5. The UK data protection and digital information bill - what is it?
6. Information security
7. Record of Processing and supplier due diligence - what's next with any new legislation changes
8. Data retention (IRMS)
9. Confirm future appointments

1. Where are you at (review of status)? How we can support you

The school remain proactive with their privacy programme with GDPR documents listed within the GDPR section of the school website:

- GDPR/data protection policy
- Privacy notice(s)
- SAR and data breach procedure
- FOI and publication scheme
- Supplier/third party list

Note: HR to check that the third party list is up to date (last checked in July 2022).

2. Staff changes – housekeeping

HR confirmed that staff lists are up to date. SL mentioned for new staff, if not already, consider including DPE's e-learning NCSC/GDPR training as part of the **induction process**.

Other useful documents to review and check that you have; linked to information security and mobile working are:

- Work away from school policy
- Information Security/Passwords

3. Staff training and raising staff awareness

Staff had initially completed the original DPE GDPR training. As it has been more than 2 years since this was completed HR confirmed that training will be a focus for the Autumn term 2022. SL suggested staff complete:

- **GDPR refresh**
- **Stay Safe online NCSC training**

4. KB updates and to do lists

SL demonstrated adding staff to the 'to do's and sending an email for staff to complete training. HR to contact SL if further support is needed with the process.

5. UK data protection and digital information bill

Discussed the latest UK data protection bill and that this is currently on hold. DPE will update schools with any new information.

6. Information security

HR confirmed that the schools IT provider has started the process of working through the recent NCC themed cyber security audit. DPE has a number of resources for information security including policy documentation mentioned in the themed audit. SL directed HR to the information security Best Practice area.

In addition, you can check out the National Cyber Security Centre website: [ncsc.gov.uk](https://www.ncsc.gov.uk) which has useful resources and tips for schools regarding cyber security:

- **School resources:** <https://www.ncsc.gov.uk/section/education-skills/schools>
- **Governor Qs for schools:**
<https://www.ncsc.gov.uk/information/school-governor-questions>

7. Record of Processing and supplier due diligence

The school has a number of RoPs that were mapped across previously. SL explained that there are over 400 generic processes that the school can copy across. SL explained that the requirement may change for completion in the future, depending on the new UK Data Protection Bill. SL has put this on hold for a future consultation.

8. Data retention

Organisations can set deadlines, document and justify timeframes they have set for retaining data. There are **two key factors**: the **purpose** for processing the data, and any **legal or regulatory requirements** for **retaining it**. One of your purposes will need to apply for you to continue to store the data. Data should not be held for longer than is needed. You shouldn't just keep data just in case you may need it in the future. SL and HR discussed different systems ie. the schools MIS and the SCR. It was agreed that there is conflicting information and grey areas. **DPE have tools within the Records Management Best Practice area to support schools:**

DPE's [record management](#) best practice area

- [DfE](#) Annual review of school records and safe data destruction checklist
- [ICO](#)
- DPEs [Record of Processing \(RoP\)](#)
- Your third party list within your privacy notice

- Laws and regulations (for example, financial regulations and handbooks and limitations act: <https://www.legislation.gov.uk/ukpga/1980/58> /legislation: <https://www.legislation.gov.uk/uksi/2021/833/contents/made>)
- [Microsoft retention tools](#)
- [Google retention tools](#)
- [MIS retention tools](#)
- Network scanning and retention tools - speak to your IT department

SL will also be completing workshops in the future that can be booked online via the DPE website>My Activities>Events

Note: HR raised the storing of ID for DBS with NCC guidance. SL to follow up with the DPE team.